

**CIVIL COVER SHEET**

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

**I. (a) PLAINTIFFS**

EDWARD WILCZYNSKI, Individually and as Administrator of Estate of Kristin Wilczynski

(b) County of Residence of First Listed Plaintiff New Haven  
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Kennedy, Johnson, Schwab & Roberge, LLC / John J. Kennedy, Jr.  
555 Long Wharf Drive, 13th Floor Brendan K. Nelligan  
New Haven, CT 06511 / Tel: (203) 865-8430

**DEFENDANTS**

UNITED STATES OF AMERICA

County of Residence of First Listed Defendant  
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

**II. BASIS OF JURISDICTION** (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question (U.S. Government Not a Party)
- ☒ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

**III. CITIZENSHIP OF PRINCIPAL PARTIES** (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- |                                         | PTF                                   | DEF                        |                                                               | PTF                        | DEF                        |
|-----------------------------------------|---------------------------------------|----------------------------|---------------------------------------------------------------|----------------------------|----------------------------|
| Citizen of This State                   | <input checked="" type="checkbox"/> 1 | <input type="checkbox"/> 1 | Incorporated or Principal Place of Business In This State     | <input type="checkbox"/> 4 | <input type="checkbox"/> 4 |
| Citizen of Another State                | <input type="checkbox"/> 2            | <input type="checkbox"/> 2 | Incorporated and Principal Place of Business In Another State | <input type="checkbox"/> 5 | <input type="checkbox"/> 5 |
| Citizen or Subject of a Foreign Country | <input type="checkbox"/> 3            | <input type="checkbox"/> 3 | Foreign Nation                                                | <input type="checkbox"/> 6 | <input type="checkbox"/> 6 |

**IV. NATURE OF SUIT** (Place an "X" in One Box Only)

Click here for: Nature of Suit Code Descriptions.

| CONTRACT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | TORTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | FORFEITURE/PENALTY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | BANKRUPTCY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | OTHER STATUTES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> 110 Insurance<br><input type="checkbox"/> 120 Marine<br><input type="checkbox"/> 130 Miller Act<br><input type="checkbox"/> 140 Negotiable Instrument<br><input type="checkbox"/> 150 Recovery of Overpayment & Enforcement of Judgment<br><input type="checkbox"/> 151 Medicare Act<br><input type="checkbox"/> 152 Recovery of Defaulted Student Loans (Excludes Veterans)<br><input type="checkbox"/> 153 Recovery of Overpayment of Veteran's Benefits<br><input type="checkbox"/> 160 Stockholders' Suits<br><input type="checkbox"/> 190 Other Contract<br><input type="checkbox"/> 195 Contract Product Liability<br><input type="checkbox"/> 196 Franchise | <b>PERSONAL INJURY</b><br><input type="checkbox"/> 310 Airplane<br><input type="checkbox"/> 315 Airplane Product Liability<br><input type="checkbox"/> 320 Assault, Libel & Slander<br><input type="checkbox"/> 330 Federal Employers' Liability<br><input type="checkbox"/> 340 Marine<br><input type="checkbox"/> 345 Marine Product Liability<br><input checked="" type="checkbox"/> 350 Motor Vehicle<br><input type="checkbox"/> 355 Motor Vehicle Product Liability<br><input type="checkbox"/> 360 Other Personal Injury<br><input type="checkbox"/> 362 Personal Injury - Medical Malpractice | <b>PERSONAL INJURY</b><br><input type="checkbox"/> 365 Personal Injury - Product Liability<br><input type="checkbox"/> 367 Health Care/ Pharmaceutical Personal Injury Product Liability<br><input type="checkbox"/> 368 Asbestos Personal Injury Product Liability<br><b>PERSONAL PROPERTY</b><br><input type="checkbox"/> 370 Other Fraud<br><input type="checkbox"/> 371 Truth in Lending<br><input type="checkbox"/> 380 Other Personal Property Damage<br><input type="checkbox"/> 385 Property Damage Product Liability | <input type="checkbox"/> 625 Drug Related Seizure of Property 21 USC 881<br><input type="checkbox"/> 690 Other<br><b>LABOR</b><br><input type="checkbox"/> 710 Fair Labor Standards Act<br><input type="checkbox"/> 720 Labor/Management Relations<br><input type="checkbox"/> 740 Railway Labor Act<br><input type="checkbox"/> 751 Family and Medical Leave Act<br><input type="checkbox"/> 790 Other Labor Litigation<br><input type="checkbox"/> 791 Employee Retirement Income Security Act<br><b>IMMIGRATION</b><br><input type="checkbox"/> 462 Naturalization Application<br><input type="checkbox"/> 465 Other Immigration Actions | <input type="checkbox"/> 422 Appeal 28 USC 158<br><input type="checkbox"/> 423 Withdrawal 28 USC 157<br><b>PROPERTY RIGHTS</b><br><input type="checkbox"/> 820 Copyrights<br><input type="checkbox"/> 830 Patent<br><input type="checkbox"/> 835 Patent - Abbreviated New Drug Application<br><input type="checkbox"/> 840 Trademark<br><b>SOCIAL SECURITY</b><br><input type="checkbox"/> 861 HIA (1395ff)<br><input type="checkbox"/> 862 Black Lung (923)<br><input type="checkbox"/> 863 DIWC/DIWW (405(g))<br><input type="checkbox"/> 864 SSID Title XVI<br><input type="checkbox"/> 865 RSI (405(g))<br><b>FEDERAL TAX SUITS</b><br><input type="checkbox"/> 870 Taxes (U.S. Plaintiff or Defendant)<br><input type="checkbox"/> 871 IRS—Third Party 26 USC 7609 | <input type="checkbox"/> 375 False Claims Act<br><input type="checkbox"/> 376 Qui Tam (31 USC 3729(a))<br><input type="checkbox"/> 400 State Reapportionment<br><input type="checkbox"/> 410 Antitrust<br><input type="checkbox"/> 430 Banks and Banking<br><input type="checkbox"/> 450 Commerce<br><input type="checkbox"/> 460 Deportation<br><input type="checkbox"/> 470 Racketeer Influenced and Corrupt Organizations<br><input type="checkbox"/> 480 Consumer Credit<br><input type="checkbox"/> 490 Cable/Sat TV<br><input type="checkbox"/> 850 Securities/Commodities/Exchange<br><input type="checkbox"/> 890 Other Statutory Actions<br><input type="checkbox"/> 891 Agricultural Acts<br><input type="checkbox"/> 893 Environmental Matters<br><input type="checkbox"/> 895 Freedom of Information Act<br><input type="checkbox"/> 896 Arbitration<br><input type="checkbox"/> 899 Administrative Procedure Act/Review or Appeal of Agency Decision<br><input type="checkbox"/> 950 Constitutionality of State Statutes |
| <b>REAL PROPERTY</b><br><input type="checkbox"/> 210 Land Condemnation<br><input type="checkbox"/> 220 Foreclosure<br><input type="checkbox"/> 230 Rent Lease & Ejectment<br><input type="checkbox"/> 240 Torts to Land<br><input type="checkbox"/> 245 Tort Product Liability<br><input type="checkbox"/> 290 All Other Real Property                                                                                                                                                                                                                                                                                                                                                      | <b>CIVIL RIGHTS</b><br><input type="checkbox"/> 440 Other Civil Rights<br><input type="checkbox"/> 441 Voting<br><input type="checkbox"/> 442 Employment<br><input type="checkbox"/> 443 Housing/Accommodations<br><input type="checkbox"/> 445 Amer. w/Disabilities - Employment<br><input type="checkbox"/> 446 Amer. w/Disabilities - Other<br><input type="checkbox"/> 448 Education                                                                                                                                                                                                              | <b>PRISONER PETITIONS</b><br><b>Habeas Corpus:</b><br><input type="checkbox"/> 463 Alien Detainee<br><input type="checkbox"/> 510 Motions to Vacate Sentence<br><input type="checkbox"/> 530 General<br><input type="checkbox"/> 535 Death Penalty<br><b>Other:</b><br><input type="checkbox"/> 540 Mandamus & Other<br><input type="checkbox"/> 550 Civil Rights<br><input type="checkbox"/> 555 Prison Condition<br><input type="checkbox"/> 560 Civil Detainee - Conditions of Confinement                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

**V. ORIGIN** (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

**VI. CAUSE OF ACTION**

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

28 U.S.C. 1346(b)

Brief description of cause:

Wrongful death action arising from a motor vehicle accident

**VII. REQUESTED IN COMPLAINT:**

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

35,000,000.00

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE

DOCKET NUMBER

DATE

07/11/2019

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

UNITED STATES DISTRICT COURT  
DISTRICT OF CONNECTICUT

|                                      |   |                |
|--------------------------------------|---|----------------|
| *****                                | : |                |
| Edward Wilczynski, Administrator     | : |                |
| of the Estate of Kristin Wilczynski, | : |                |
| and Edward Wilczynski, Individually  | : |                |
|                                      | : |                |
| Plaintiffs                           | : | CIVIL CASE NO. |
|                                      | : |                |
| vs.                                  | : |                |
|                                      | : |                |
| UNITED STATES OF AMERICA             | : | JULY 11, 2019  |
|                                      | : |                |
| Defendant                            | : |                |
| *****                                | : |                |

**COMPLAINT**

1. The plaintiff, Edward Wilczynski, in his capacity as Administrator of the Estate of Kristin Wilczynski, is an individual residing in North Haven, Connecticut, having been duly appointed by the Court of Probate District PD36 as fiduciary of the estate on October 9, 2018.

2. The plaintiff Edward Wilczynski, in his individual capacity, is an individual residing in North Haven, Connecticut.

3. Pursuant to the Federal Tort Claims Act, 28 U.S.C. § 1346(b), the defendant United States of America is a proper party defendant to this action.

**JURISDICTION AND VENUE**

4. The United States District Court for the District of Connecticut has subject matter jurisdiction over the plaintiffs' Federal Tort Claims Act claims against the defendant United States of America pursuant to 28 U.S.C. § 1346(b).

5. The United States District Court for the District of Connecticut is the proper venue. The plaintiffs are residents of the State of Connecticut and the incident which gives rise to the allegations contained herein occurred within the State of Connecticut.

**FIRST COUNT**

6. This action arises under the Federal Tort Claims Act, 28 U.S.C. §1346(b) and 28 U.S.C. §2674.

7. Pursuant to 28 U.S.C. §§2671-2680, the claims set forth in this Complaint were presented to the United States Department of Justice, Federal Bureau of Investigation, 600 State Street, New Haven, Connecticut, by way of mail on January 31, 2019.

8. By way of letter dated April 3, 2019, the United States Department of Justice, Federal Bureau of Investigation denied the plaintiffs' claims.

9. At all times mentioned herein, Courtney Bothwell was and is an individual residing in Connecticut.

10. At all times mentioned herein, Courtney Bothwell was operating a 2018 Nissan Pathfinder.

11. At all times mentioned herein, Courtney Bothwell was a duly appointed Task Force Officer for the United States of America, Federal Bureau of Investigation.

12. Upon information and belief, the defendant United States of America had leased the 2018 Nissan Pathfinder and had provided the same to Task Force Officer Courtney Bothwell for her use.

13. Upon information and belief, at all times mentioned herein, Task Force Officer Courtney Bothwell was operating the 2018 Nissan Pathfinder with the consent and permission of the defendant, the United States of America and as an agent, servant, and/or employee of the United States of America.

14. On July 20, 2018, at approximately 6:48 P.M., Task Force Officer Courtney Bothwell was operating the 2018 Nissan Pathfinder westbound on Dixwell Avenue in Hamden, Connecticut, in the vicinity of the intersection of Dixwell Avenue and Old Dixwell Avenue.

15. At said time and at said place, the plaintiff's decedent, Kristin Wilczynski was a pedestrian proceeding westbound on Dixwell Avenue and was beginning to proceed towards the traffic island located at the intersection of Dixwell Avenue and Old Dixwell Avenue in Hamden, Connecticut.

16. At said time and place, Courtney Bothwell was travelling westbound on Dixwell Avenue when she suddenly and without warning forcefully struck the plaintiff's decedent, thereby causing the injuries, losses, and damages as hereinafter set forth.

17. Said collision was caused by the carelessness and negligence of Task Force Officer Courtney Bothwell, in that:

- a. she was inattentive and failed to keep a reasonable and proper lookout for pedestrians on said roadway at said time and place;
- b. she failed to sound her horn or give the plaintiff a timely warning of the impending collision;
- c. she failed to apply her brakes in time to avoid said collision, although by a proper and reasonable exercise of her faculties she could and should have done so;
- d. she operated said motor vehicle at a greater rate of speed than the circumstances warranted;
- e. she failed to keep said vehicle under reasonable and proper control;
- f. she failed to turn said vehicle in time to avoid a collision;
- g. she violated §14-218a of the motor vehicle laws of the State of Connecticut in operating her vehicle faster than was reasonable under the circumstances then and there existing;
- h. she violated §14-219 of the motor vehicle laws of the State of Connecticut by operating her vehicle in excess of the posted speed limit.
- i. she violated §14-222 of the motor vehicle laws of the State of Connecticut in operating her vehicle in a reckless manner.

18. As a direct result of the carelessness and negligence of Task Force Officer Courtney Bothwell acting as an agent of the defendant United States of America, the plaintiff's decedent suffered catastrophic injuries to her skull and torso, including blunt force injury to her head, thereby resulting in her untimely death.

19. As a further result thereof, the plaintiff's decedent was caused to suffer extreme antemortem pain and suffering and mental anguish prior to her death.

20. As a further result hereof, the plaintiff Edward Wilczynski, Administrator of the Estate of Kristen Wilczynski, has been forced to incur financial obligations for funeral and burial expenses on behalf of the plaintiff's decedent, Kristen Wilczynski.

21. As a further result thereof, the plaintiff's decedent earning capacity has been destroyed.

22. As a further result thereof, the plaintiff's decedent has been permanently deprived of the ability to enjoy all of life's activities.

23. The plaintiff Edward Wilczynski, Administrator of the Estate of Kristen Wilczynski, brings this action pursuant to Conn. Gen. Stat. §52-555.

## **SECOND COUNT**

24-41. Paragraphs 6 through 23 of the First Count are hereby incorporated and made Paragraphs 24 through 41 of the Second Count as if more fully set forth herein.

42. At all times mentioned herein, the plaintiff Edward Wilczynski was lawfully married to the decedent, Kristen Wilczynski.

43. As a direct result of the carelessness and negligence of Task Force Office Courtney Bothwell acting as an agent of the defendant United States of America, the plaintiff Edward Wilczynski has lost the consortium of his wife.

44. The plaintiff Edward Wilczynski, in his individual capacity, brings this action pursuant to Conn. Gen. Stat. §52-555a.

## **THIRD COUNT**

45-56. Paragraphs 6 through 16 of the First Count are hereby incorporated and made paragraphs 45 through 56 of this the Third Count, as if more fully set forth herein.

57. Said collision was caused by the recklessness of Task Force Officer Courtney Bothwell, in that she:

- a. deliberately or with reckless disregard operated said vehicle at an excessive rate of speed in violation of § 14-218a(a) of the Connecticut General Statutes, and said violation was a substantial factor in causing the plaintiff's injuries;

- b. deliberately or with reckless disregard violated § 14-222(a) of the Connecticut General Statutes in operating said vehicle in a reckless and dangerous manner having regard to width, traffic and use of the highway, intersection of streets, and weather conditions, and said violation was a substantial factor in causing plaintiff's injuries;
- c. deliberately or with reckless disregard violated § 14-219(a) of the Connecticut General Statutes in operating said vehicle at such a rate of speed as to endanger the life of the plaintiff and said violation was a substantial factor in causing plaintiff's injuries.

58. As a direct result of the recklessness of Task Force Officer Courtney Bothwell acting as an agent of the defendant United States of America, the plaintiff's decedent suffered catastrophic injuries to her skull and torso, including blunt force injury to her head, thereby resulting in her untimely death.

59. As a further result thereof, the plaintiff's decedent was caused to suffer extreme antemortem pain and suffering and mental anguish prior to her death.

60. As a further result hereof, the plaintiff Edward Wilczynski, Administrator of the Estate of Kristen Wilczynski, has been forced to incur financial obligations for funeral and burial expenses on behalf of the plaintiff's decedent, Kristen Wilczynski.

61. As a further result thereof, the plaintiff's decedent earning capacity has been destroyed.

62. As a further result thereof, the plaintiff's decedent has been permanently deprived of the ability to enjoy all of life's activities.

63. The plaintiff Edward Wilczynski, Administrator of the Estate of Kristen Wilczynski, brings this action pursuant to Conn. Gen. Stat. §52-555.

#### **FOURTH COUNT**

64-82. Paragraphs 45 through 63 of the Third Count are hereby incorporated and made paragraphs 64 through 82 of this the Fourth Count, as if more fully set forth herein.

83. At all times mentioned herein, the plaintiff Edward Wilczynski was lawfully married to the decedent, Kristen Wilczynski.

84. As a direct result of the recklessness of Task Force Officer Courtney Bothwell acting as an agent of the defendant United States of America as aforesaid, the plaintiff Edward Wilczynski has lost the consortium of his wife.

85. The plaintiff Edward Wilczynski, in his individual capacity, brings this action pursuant to Conn. Gen. Stat. §52-555a.

**REQUEST FOR RELIEF**

WHEREFORE, the Plaintiffs demand compensatory and punitive damages as against the United States of America in the Sum of Thirty Five Million Dollars (\$35,000,000.00). Pursuant to Federal Rule of Civil Procedure 38(b), the Plaintiffs demand trial by jury as to all counts.

THE PLAINTIFFS,

Edward Wilczynski, Administrator of the Estate of Kristen Wilczynski  
Edward Wilczynski, Individually

BY:



John J. Kennedy, Jr. (ct04818)  
Brendan K. Nelligan (ct30224)  
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